

22STCV26485 22STCV26485

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-02

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Case Number: 22STCV26485 Hearing Date: September 2, 2026 Dept: 309

Superior

Court of California

County

of Los Angeles

DEPARTMENT 17

TENTATIVE RULING

LAWRENCE

GENYARD, et al.

vs.

EASTSIDE

VILLAGE, L.P.

Case No.: 22STCV26485

Hearing

Date: September 2, 2026

Plaintiffs'

motion for attorney fees is granted in the amount of \$548,932.50.

On

8/4/2025, a jury unanimously ruled in favor of Plaintiffs on seven causes of

action.

On

3/23/2026, Plaintiffs moved for attorney fees totaling \$1,477,325.00. Per supplemental briefing filed 8/7/2026, Plaintiff reduced the lodestar request to \$627,532.50, with a lodestar multiplier of 2.0, reducing Plaintiffs total requested attorney fees to \$1,255,065.00.

Legal Standard

The party

claiming attorneys' fees must establish entitlement to such fees and the reasonableness of the fees claimed. (*Civic Western Corporation v. Zila Industries, Inc.* (1977) 66 Cal.App.3d 1, 16.) "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties[.]" (CCP § 1021.)

"It is well

established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623.)

In exercising its discretion, the court should

consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (*Id.*)

In

determining what constitutes a reasonable compensation for an attorney who has rendered services in connection with a legal proceeding, the court may and should consider the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorneys' efforts, their learning, their age, and their experience in the particular type of work demanded the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed.

(*Stokus v. Marsh* (1990) 217

Cal.App.3d 647, 657.)

In

determining the proper amount of fees to award, courts use the lodestar method. The lodestar figure is calculated by multiplying the total number of reasonable hours expended by the reasonable hourly rate. “Fundamental to its determination ... [is] a careful compilation of the time spent and reasonable hourly compensation of each attorney ... in the presentation of the case.” (Serrano v. Priest (1977) 20 Cal.3d 25, 48 (Serrano III).) A reasonable hourly rate must reflect the skill and experience of the attorney. (Id. at 49.) “Prevailing parties are compensated for hours reasonably spent on fee-related issues. A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 635 (Serrano IV); see also Weber v. Langholz (1995) 39 Cal.App.4th 1578, 1587 (“The trial court could make its own evaluation of the reasonable worth of the work done in light of the nature of the case, and of the credibility of counsel’s declaration unsubstantiated by time records and billing statements.”))

Reasonable

attorney fees should be based on an objective standard of reasonableness, i.e., the market value of services rendered, not on some notion of cost incurred. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1090.) The value of legal services performed in a case is a matter in which the trial court has its own expertise. (Id. at 1096.) The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (Id.) The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. (Id.)

Discussion

Plaintiffs

seek attorney fees of \$627,532.50, with a lodestar multiplier of 2.0. Plaintiffs claim an entitlement to recover attorney fees pursuant to the parties’ underlying lease agreement, and as a prevailing party.

In

opposition, Defendants contend that Plaintiffs are not the prevailing party because Plaintiffs sought at least \$745,020 in damages plus punitive damages, yet, moving Plaintiffs' verdicts totaled only \$483,413 with no punitive damages. For determining the prevailing party for fee motions, the courts adopt a pragmatic approach, determining prevailing party status based on which party succeeded "on a practical level." (Sharif v. Mehusa, Inc. (2015) 241 Cal.App.4th 185.) Here, the Court finds Plaintiffs to be a prevailing party as they best realized their litigation objectives. While they did not receive punitive damages, the jury unanimously ruled in their favor on every cause of action and awarded them a six-figure judgment.

Rates

Counsel

claims \$1,250/hr for lead trial counsel, John "Drew" Haughton, and \$750/hr for second chair counsel Geoffrey A. Bowen.

The Court

finds Mr. Haughton's rate to be unreasonable based on the relevant factors, and reduces it to \$750.00. (Stokus, supra, 217 Cal.App.3d at p. 657.) Mr. Bowen graduated from law school in 2021, and claims only four years of experience specifically in "landlord tenant, housing, and habitability law." (Bowen Dec. ¶ 10.) After weighing the relevant factors, including the nature of the litigation and experience, the Court finds \$550/hr rate to be reasonable. (Id.)

Hours

Mr.

Haughton claims 357.2 hours on this matter. Geoffrey A. Bowen claims 389.5 hours spent.

The

Court previously continued this motion to allow counsel to isolate only the applicable billing hours for the nine prevailing tenants, writing:

However, as

noted by Defendants, this Motion is brought by only nine of the tenants who

prevailed at trial. Yet, Plaintiffs' billing entries clearly

contain time

for phone calls and emails with the Plaintiffs who accepted the 998 offers.

This is improper. (Ex. M to Mokri Dec.) Additionally, there are several entries are vague and cryptic entries such as "call to client," "contact client," and "email to client." (Ex. M to Mokri Dec.) There is no way of knowing whether these entries are not solely attributed to the clients that settled out of the case and are not moving for attorney's fees. (Cruz v. Ayromloo (2007) 155 Cal.App.4th 1270, 1278.)

Plaintiffs'

counsel must re-review their billing records and limited claimed hours, to the extent possible, to only the moving Plaintiffs. Counsel is to then file a supplemental brief setting forth these amended billing records and amended argument to justify those hours claimed as reasonable.

In

supplemental briefing, Plaintiffs explained that they addressed the Court's concerns in the following ways:

-

The amended records remove time-entries

solely attributable to plaintiffs who accepted 998 offers and did not join the fee motion.

-

Where counsel could identify the client

and litigation purpose from contemporaneous materials, including email records, calendars, deposition schedules, hearing dates, inspection dates, and the case chronology, Plaintiffs amended the description identify the moving Plaintiff (via full name or initials) or common case purpose.

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Where a client communication concerned

common-benefit work, such as property inspections, preparation for shared trial evidence, case scheduling, or communications necessary to coordinate trial testimony for moving Plaintiffs, Plaintiffs retained the entry and clarified the basis for retention.

-

Where counsel could not reliably identify the client or purpose, Plaintiffs removed or reduced the entry.

After review, the Court finds that these mitigation efforts were sufficient, and that common-benefit work was properly retained as many tasks were not isolated to any one plaintiff and thus cannot be reasonably isolated or removed. The elimination of 60.4 hours leaves 686.35 hours claimed total, with Mr. Houghton still claiming 357.2 hours, and Mr. Bowen reducing his hours to 329.15.

At the reduced rates, this produces lodestar amounts of \$367,900 for Mr. Houghton (\$750/hr x 357.2 hrs), plus \$181,032.50 for Mr. Bowen (\$550/hr x 329.15 hrs), for a total of \$548,932.50 in attorney fees.

Lodestar Enhancement

Plaintiffs

request a 2.0 lodestar enhancement based on the contingency nature of the case and the quality of the work performed.

Relevant

factors to determine whether an enhancement is appropriate include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Here, the

hourly rates set forth above capture the skill and the contingent nature. Thus, any multiplier would be duplicative of the calculations set forth above.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.

Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.